



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

July 29, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 6071
(SIXTEENTH REVISION)

EXPIRATION DATE: 2026-06-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Kidde Technologies DBA Kidde Aerospace & Defense
Wilson, NC
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the manufacture, marking, sale and use of a non-DOT specification cylinder conforming to all regulations applicable to DOT Specification 4DA, except as specified herein, for use in transporting materials authorized under this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.302a, 173.304a, and 173.305 in that non-DOT specification cylinders are not authorized, except as specified herein.

5. BASIS: This special permit is based on the application of Kidde Technologies dated July 7, 2022 and submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Compressed gas, n.o.s. (<i>mixture of bromotrifluoromethane and nitrogen</i>)	2.2	UN1956	N/A

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: Prescribed packaging is a non-DOT specification stainless steel pressure vessel complying with DOT Specification 4DA (§§ 178.35 and 178.58) except as follows:

§ 178.35(e) *Safety devices*

Applies except the maximum operating pressure for the safety relief device is at least 100 psig below the pressure of required for the hydrostatic test under § 178.58(i).

§ 178.35(f) *Markings*

Applies except the special permit number must be marked in lieu of "DOT-4DA."

§ 178.58(a) *Type, size and service pressure*

The container capacity must not exceed 2500 cubic inches with a maximum service pressure of 1,000 psig.

§ 178.58(b) *Steel*

The authorized material of construction is a stainless steel designated Almar-362, product of the Allegheny-Ludlum Company.

§ 178.58(f) *Wall thickness*

Wall thickness calculations shall be based on the data submitted in the Walter Kidde and Company, Incorporated's petition of June 6, 1969.

§ 178.58(g) *Heat treatment*

Paragraphs (1),(3), and (4) do not apply.

§ 178.58(i) *Hydrostatic test*

Applies except that each container must be tested to at least 2.50 times the service pressure.

§ 178.58(j) *Burst test*

The minimum burst pressure must be 1.33 times the hydrostatic test pressure as specified in § 178.58(i).

b. TESTING: Pressure vessels are subject to the retest requirements applicable to DOT-4DA containers prescribed in § 180.209.

c. OPERATIONAL CONTROLS: Pressure in the vessel must not exceed 800 psig at 70 °F. The filling limits of § 173.301a(a) and § 173.305(b) apply.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be marked with a registration symbol designated by the Office of Hazardous Materials Safety for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

- f. The cylinder must be shipped in strong outside packagings in accordance with § 173.301(a)(9).
 - g. Transportation of oxygen is only authorized in aircraft when in accordance with § 175.501.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo aircraft only, and passenger-carrying aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "W. Schoonover", is written over a horizontal line.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae